

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:)
)
ROSEMARY BLANCHE WALTON, RONALD) Anthony Wellenreiter, Q.C.,
WALTON and DAVID WALTON) counsel on behalf of the
) Plaintiffs
)
Plaintiffs)
)
- and -)
)
)
THE PLAINSMAN DINING ROOMS) Michael Good, duly authorized
LIMITED) to represent the Defendant
) Corporation
)
Defendant)
)
)
) HEARD: January 22, 23 26 and
) 27, 2004
) (at Hamilton)

CAVARZAN J.

[1] Rosemary Walton brings this action to recover damages for injuries received in a slip and fall occurrence. Although some issue was taken with respect to the extent of her injuries, and the extent to which her current symptoms may be attributable to her pre-slip and fall medical condition, these matters were not pressed in argument.

[2] The focus of the defence in this case is denial of liability. The defendant maintains that it had in place

reasonable measures to ensure the safety of those entering on the premises. It denies that it was negligent.

[3] The plaintiff, Rosemary Walton, claims general damages, special damages, and future care costs. **Family Law Act** claims are advanced on behalf of her husband and her son.

BACKGROUND

[4] Sunday, May 9, 1999 was Mother's Day. Rosemary Walton, together with her husband, her son and his wife, and her son's mother-in-law and sister-in-law, celebrated with a lunch at the defendant restaurant. Rosemary Walton had dined at this popular establishment on many occasions; in fact, it had been the site of her wedding reception in 1961.

[5] The May 9, 1999 visit ended tragically when she slipped and fell on her way back from the washroom following the conclusion of the meal. Her most serious injury was a fractured right wrist.

THE LIABILITY ISSUE

[6] The Plainsman is a large restaurant with a seating capacity of about 600. It operates as a buffet restaurant. William Armstrong, one of the then owners of The Plainsman, testified that Mother's Day was a very busy day in which 862 people had been served during the brunch period.

[7] Rosemary Walton and her party had arrived at about 1:30 p.m. They finished their meal and prepared to depart the restaurant at about 3:30 p.m. None of them had consumed any alcohol. While the two males left the restaurant to retrieve their motorcars, the four women went to the washroom.

[8] The route to the washrooms from the dining area follows corridors used as well by restaurant staff to travel to and from one of the entrances to the kitchen area. Exhibits 7C and 7D are photographs of that part of the corridor near the kitchen entrance where the slip and fall occurred. They show a "bus cart", stationed against one wall of the corridor. It contains plastic tubs with dishes which had been cleared from

tables and a garbage bin into which leftover scraps of food are deposited. Much was made by the plaintiff's expert witness, Brian Allen, of the potential hazard created for restaurant patrons obliged to navigate a mixed-use corridor where restaurant staff handle dishes cleared from the tables.

[9] William Armstrong, who had been on duty that day, testified that bus carts are not located in that area on busy days. They are located in a more central area of the restaurant. When full, they are wheeled to the main kitchen entrance in the south end of the restaurant where the dishwashing equipment is located. Plates, cups, glasses and utensils are then transferred into racks and loaded into a large commercial dishwasher. The plastic tubs on the bus cart are designed to contain any liquids which spill from the dirty dishes, cups, or glasses.

[10] The plaintiffs concede that there was no bus cart stationed near the point of the slip and fall on May 9, 1999.

[11] Rosemary Walton testified that the hallway was clear on the way to the washroom. There was no debris of any kind on the floor. The four women remained in the washroom for about 10 minutes. As they returned to the dining area, Rosemary Walton was in the lead with Carolyn Bentley on her left; Karen Walton followed behind the plaintiff with Lynn Kavanaugh on her left.

[12] Rosemary Walton testified that she was walking in a normal manner and watching for people. It was the end of the lunch period, and restaurant staff were busy preparing for the dinner period. Suddenly, her right foot slipped out behind her, she reached out with her right arm to break her fall, and her hand struck a plastic molded rack which held mugs and glassware. It was one of two loaded racks which were stacked on the floor approximately where the bus cart is shown next to the wall in Exhibit 7C. The plaintiff marked with an "X" the point of her fall next to the location of the racks which she marked with an "O".

[13] She described the racks as being about 1.5 feet x 1.5 feet, and stacked to a height of about one foot.

[14] The plaintiff ended up on the floor in a seated position with her back against the wall. She recalls seeing a liquid on the floor which was later cleaned up by a waitress who had come to her aid. The plaintiff was ultimately removed from

that position on a gurney by ambulance attendants who transported her to the hospital. While at the hospital, she examined the sole of her right shoe and noted "*something slightly gooey*" on it.

[15] Carolyn Bentley testified that she had looked for the cause of the fall. She saw a wet substance on the floor. It appeared to be oily or to have "*a shine to it*".

[16] Karen Walton was more specific. She noticed water on the floor. After ice had been brought from the kitchen to apply to the plaintiff's injured wrist, she noticed more water on the floor. A waitress mopped up the water, then returned to work because the restaurant was busy.

[17] Although Lynn Kavanagh did not witness the fall, she noticed the green dish racks against the wall. She noticed a wet area on the tile floor where the fall had occurred and wondered whether the moisture came from the dishwasher dish racks. She testified that someone cleaned up the wet area while she was present.

[18] None of the restaurant staff who attended to assist the plaintiff after her fall was called by the defence to testify at trial. James Anderson, the president of the defendant company, was present that day. He attended at the site of the plaintiff's fall. He was not called to testify. Some of his evidence, given on examination for discovery, was read in as part of the plaintiff's case.

[19] The other manager on duty that day was William Armstrong. He had 15 years of experience in the restaurant industry by that time. On May 9, 1999 he was working as "*front-of-house*" manager dealing with customers and their needs. He neither saw nor heard the plaintiff fall. He testified that he had been advised of the incident. When he realized that Mr. Anderson had gone to see the person who had fallen, he instructed staff not to use that entrance to the kitchen. Accordingly, he was not one of the restaurant personnel who responded to the plaintiff's plight.

[20] Although Mr. Armstrong attended twice at the area while the plaintiff was on the floor, he testified that he had no knowledge of the racks with the plates and cups being on the floor at the time. He agreed, however, that if the racks were

there it would have been an inappropriate place to store them. It is industry policy not to place clean china, flatware, or glassware on the floor. He conceded that water is still on items when they are removed from the dishwasher, and that it is possible that water from the racks leaked out onto the tile floor. He qualified this latter answer, however, by noting that the high heat drying cycle of the dishwasher would likely eliminate water from the washed items.

[21] Rosemary Walton was wearing sensible low-heeled shoes that day which had a rubber sole with a good deep tread design. She testified that as the ambulance personnel wheeled her out of the restaurant through the front entrance, they passed many patrons. She was suffering severe pain and she felt great embarrassment. She saw some humour in the spectacle, however, and announced that *"It wasn't the food - it wasn't the food"*.

[22] A defence witness, Hazel Colling, was working as head hostess at the front door when the plaintiff was being wheeled out. She had learned of the plaintiff's fall and had been holding at the front door, people arriving for dinner. She testified that as the plaintiff left on the gurney she had said to those waiting, *"Don't worry, it wasn't the food. It was just me - I was clumsy"*. Rosemary Walton denied that she had said anything other than the words about the food.

DAMAGES

[23] The plaintiff summarizes the effect of the slip and fall injuries as resulting in the loss of her independence. She was 64 years of age at the time of the incident; she is now 69. Prior to May 9, 1999 she was a very active and independent person who, despite some health problems, was able to carry on her activities of daily living.

[24] She had retired after a long career as an elementary school teacher, but remained very active in church, charitable and other community activities. In particular, because of her background in music she directed her church choir, a children's choir, and a children's bell choir. She also directed a seniors' choir which traveled to various locations in the community once a week to perform concerts.

[25] She had been president of the Lupus Society and helped each year to organize a fund-raising golf tournament.

[26] All of these activities necessitated driving her automobile. Her residence was "prize central" for the annual golf tournament. She would drive to the places of business of those who contributed prizes to pick up the items. She helped with the work of organizing church dinners as part of a women's committee. She helped to serve at those dinners.

[27] As a result of the injury to her wrist and the resulting loss of strength in her right hand, she has not been able to drive her automobile since May 9, 1999, nor lift objects with her right hand. She can no longer play the piano to provide musical accompaniment to the choirs.

[28] Several witnesses were called who confirmed her pre-May 9, 1999 capabilities and the drastic change in those capabilities after that date. None of that testimony was challenged.

[29] None of the medical evidence tendered was seriously challenged. Reports from the family physician, an orthopaedic surgeon, a neurologist and a physiatrist were filed. The December 13, 2000 report of Dr. Kenneth A. Bowler, Physical Medicine and Rehabilitation (Exhibit 2, Tab 5, pp. 169-177) summarizes her current condition. He found a permanent residual loss of function in her right arm at both the elbow and the wrist. At page 176 he notes that:

The nature of her fall, the fractures being interarticular with residual non-union of the distal styloid will result in potentially increasing osteoarthritic change in the right wrist and hence pain.

At page 177 he concluded that "she will remain residually symptomatic with discomfort in the right wrist indefinitely into the future".

[30] In his report of July 17, 2003, the plaintiff's family physician, Dr. McMillan, reported as follows:

I believe with reasonable medical certainty that Mrs. Walton will not have any further

improvement in her right wrist pain or weakness, and that the symptoms will slowly and steadily worsen. I believe that she will continue to require medications for pain, inflammation and insomnia. She will likely have further minor complications from the wrist injury, such as her June 22, 2003 right thumb collateral ligament injury, caused by catching her thumb on a door handle.

[31] At trial Dr. McMillan confirmed that opinion in his oral testimony. He described her wrist injury as a chronic injury. He stated that physiotherapy will be helpful in improving function, but that it would not be a cure.

[32] After May 9, 1999, she was no longer able to perform her normal activities of daily living in the home, such as cooking, heavy cleaning, sewing, and cutting her own hair.

[33] The plaintiff's claims for out-of-pocket expenses and for future care costs were not challenged. I will review these in due course.

THE LAW

[34] Section 3(1) of the **Occupiers' Liability Act**, R.S.O. 1990, Chapter 0.2 provides as follows:

3(1) An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

[35] In the leading case of **Waldick v. Malcolm** [1991] 2 S.C.R. 456, the Supreme Court of Canada considered the nature and extent of the duty of care under the **Ontario Occupiers' Liability Act**. The following statements at paragraphs 33 and 45 are instructive:

33.the statutory duty on occupiers is framed quite generally, as indeed it must be. That duty is to take reasonable care in the circumstances to make the premises safe. That duty does not change but the factors which are relevant to an assessment of what constitutes reasonable care will necessarily be very specific to each fact situation - thus the proviso "such care as in all circumstances of the case is reasonable".

45. The goals of the Act are to promote, and indeed, require where circumstances warrant, positive action on the part of occupiers to make their premises reasonably safe.

[36] There is potential for hazardous conditions to be created when the route to the public washrooms in a busy restaurant is shared by restaurant staff going to and from the kitchen area. It behooves such an establishment to put into place a system to safeguard against dangerous substances being allowed to escape onto the floors and to remain there. Furthermore, it must ensure that there is compliance by those charged with the responsibility of executing the plan or system. See **Garofalo v. Canada Safeway Ltd.**, [1998] O.J. No. 302 (O.C.J. - Gen.Div.) at paras., 18 to 28 inclusive, and the cases referred to therein.

[37] I would adopt, with respect, the following conclusions from the reasoning of Kozak J. in **Garofalo** as applicable to the circumstances of the instant case:

29. Tort law involves the attribution of the risk or the allocation of the responsibility for the accident. In this case we are dealing with a statutory duty of care imposed by Section 3 of the Occupiers' Liability Act which requires that an occupier take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises are reasonably safe when on the premises. At the same time, a person coming onto the property is expected to be reasonably alert to any obvious dangers (i.e. not to be

contributorily negligent) and not voluntarily assume the risk.

30. The onus is on the plaintiff to prove on a balance of probabilities that the defendant was in breach of a positive duty of care. She must be able to point to some act or omission on the part of the defendant which resulted in her injury.

31. The positive or affirmative duty that is imposed upon the defendant does not extend to the removal of every possible danger. It does not require the defendant to maintain a constant surveillance or lookout for potential danger. The defendant meets its duty to take reasonable care if it takes measures that are reasonable in the circumstances.

[38] In his discovery testimony James Anderson was asked about William Armstrong's responsibilities:

61. Q. Did he have responsibility in this area where our client fell?

A. Not really. I mean, we're talking about a large area. He was only out on the floor making sure that everything was going well and everything was being cleaned up and being re-set, that's all.

[39] Anderson stated further that spills on the floor are cleaned up as they occur -- on an event basis, usually by somebody from the kitchen.

310. Q. And no one on your staff has a fixed routine like that, is that correct?

A. No, somebody is supposed to be on the floor patrolling. That was Armstrong's job that day, he was on the floor.

311. Q. *Well, what was his job then? He was supposed to be on the floor patrolling?*

A. *Just to make sure again there was nothing laying on the floor, that the tables are being cleared properly, being re-set properly.*

312. Q. *And did he have a fixed routine of what you describe as patrolling?*

A. *No.*

313. Q. *Every five minutes, every hour?*

A. *There's no fixed routine nothing that - He hasn't got punch clocks where he has to be in each section at a certain time. He moves around the restaurant, and he stays in the restaurant on the floor all the time it's open.*

[40] William Armstrong testified that because of the size of the restaurant the front of house duties were shared between him and Melissa Wheeler that busy Mother's Day. They ensured that the buffet was replenished, that there was proper beverage service, and that tables were cleaned and re-set. All wait staff are instructed to clean up their own spills. If a "large mess" occurs, the area is to be cordoned off. The bus people have similar instructions.

[41] He testified that there is no set schedule; however, he and Ms. Wheeler walked a pattern from the front where the majority of the seating is located to the north end. They assess customer needs, check the tables, and check the floors. They check the back bar, the hallways, and the washrooms from a customer service point of view. Ms. Wheeler checks the female washroom and he checks the male washroom.

[42] On cross-examination he admitted that he had no knowledge of the condition of the floor when the plaintiff fell, and that no note or record of the incident was made. He

admitted, further, that he had spent most of his time on that busy Mother's Day in the dining area.

[43] He claimed that written safety procedures are posted for staff on the walls in the kitchen and in the bar area. None of these was produced in evidence at trial.

[44] In my view, the defendant did not meet its duty to take reasonable care to see that persons entering on the premises are reasonably safe while on the premises. It had no plan or system in place to check for hazards. In particular, those charged with the responsibility of patrolling the premises neglected the hallway to the washrooms when the restaurant was at its busiest. Mr. Armstrong and Ms. Wheeler concentrated on activities in the dining area.

[45] On the basis of the evidence presented, I find that the plaintiff slipped on wet floor tiles, and that the water came from the dish racks negligently placed against the corridor wall in the area where the plaintiff fell. The consequences of that action were foreseeable.

[46] There was no contributory negligence. In my view, nothing turns on the content of the statement made by the plaintiff as she was wheeled out of the restaurant. Both the plaintiff and Hazel Colling were credible witnesses. Even if, as Ms. Colling testified, the plaintiff had said *"Don't worry, it wasn't the food. It was just me - I was clumsy"*, it tends to confirm the plaintiff's testimony that she was extremely embarrassed by her predicament.

[47] I accept the plaintiff's testimony that she was in extreme pain at the time. Her apparent jovial demeanour when she commented to the waiting restaurant patrons was an attempt by her to alleviate her embarrassment. I do not infer from either her reported demeanour or any of the words said to have been spoken by her that she admitted liability for the slip and fall. There was no contributory negligence on her part.

[48] Liability for the plaintiff's injuries rests solely with the defendant.

NON-PECUNIARY DAMAGES

[49] Plaintiff's counsel suggested \$60,000 as the appropriate award for non-pecuniary damages in this case. He relied on the following authorities: ***Irvine v. Cara Operations Ltd.*** [2002] B.C.J. No. 2568; ***Perez v. Vancouver (City)*** [2002] B.C.J. NO. 2878; and ***Sheikhani v. Ontario (Niagara Parks Commission)*** [1998] O.J. NO. 890. The sum of \$60,000 was awarded for non-pecuniary damages in ***Irvine***. In that case the plaintiff suffered fractures of the shoulder and hip as well as of the wrist. Surgery was required for the fractured hip.

[50] Similarly in ***Sheikhani***, a fractured left humerus healed well, but surgery was required to attempt to repair the damaged radial nerve. He was left with a long, unsightly scar on his arm and with significant loss of function in the arm, wrist and hand. Non-pecuniary damages were assessed at \$60,000.

[51] In ***Perez***, where the non-pecuniary damages were assessed at \$50,000, the plaintiff had suffered a complex fracture of her left wrist requiring surgery and the placing of wires and small pins to repair the fracture. She was left with residual pain and stiffness in the wrist, elbow, and shoulder and with marked problems with gripping and carrying anything of weight. She required further surgery and a bone graft.

[52] At the time of the slip and fall Rosemary Walton suffered bruising on the right side of her body including her back, elbow, knee and hand. Her family physician, Dr. James McMillan, stated that the continued pain in her right wrist, which is worse with activity, the weakness in that wrist and hand, the occasional swelling of that wrist, and the elbow, shoulder and neck pain she still experiences are all consistent with the fall she described.

[53] Dr. McMillan's prognosis is that the wrist will not improve. She will require into the indefinite future, the medications currently being taken and physiotherapy to help maintain function and decrease the pain. He confirmed that she has arthritis in the left wrist, and is likely to have it in the right one as well. Because of the injury to the right wrist, she will have significantly greater osteoarthritis in that joint in the future.

[54] The plaintiff's fractured wrist was initially placed in a rigid cast. This was replaced after a short period with a removable cast. The repair of the fracture did not require

surgery and open reduction. There is no suggestion that it may be required in the future.

[55] I assess the plaintiff's non-pecuniary damages at \$40,000.00.

SPECIAL DAMAGES

[56] The claim for special damages is allowed to the extent of \$24,607.13. Exhibit 4, the Special Damages Brief, contains a comprehensive list of expenses incurred and said to flow directly from the injury to the plaintiff.

[57] The claim for the cost of items dropped and broken is disallowed. Even though the plaintiff is right-hand dominant and tends to reach for items instinctively with her right hand, that weakness is known to her. Regrettably, she must discipline herself to accommodate for that loss of function.

[58] The claim for lawn cutting is disallowed. There is no evidence that the plaintiff did the lawn cutting before May 9, 1999. I am not persuaded that the extra burden cast upon Ronald Walton to assist his wife precludes him from continuing with the chore of lawn cutting.

[59] The plaintiff would have incurred cost in traveling from the Seniors' Centre to McNab Street to afternoon performances even if she had not been injured. The amount claimed for that use of taxis \$172.85 - \$25.00 (for the taxi trip home from physiotherapy) i.e. \$147.85 is disallowed.

[60] The bathtub lift has never been used. It ought to have been returned for a refund. The amount of \$1,170.00 for that item is disallowed. A one-time cost for this item is included in the future care costs calculation.

[61] The total for the disallowed items is, therefore, \$3,618.07.

[62] The above assumes that the cost of a pair of replacement shoes is not included. In the event that it was included in the total claimed for special damages, the award for that item should be reduced by a further \$204.34.

FUTURE CARE COSTS

[63] The claim for this item was amply justified by the expert evidence in this case.

[64] The sum of \$53,813.00, being the present value of the future care costs as at January 20, 2004 for future care costs to age 75 is awarded.

[65] Although urged to allow such costs to age 80, I am of the view that a fair award in the circumstances is achieved by awarding those costs to age 75.

THE *FAMILY LAW ACT* CLAIMS

[66] Ronald Walton is now 74 years of age. Since May 9, 1999 much of his free time has been consumed assisting his wife with tasks she had previously performed independently. He and his wife now sleep in separate beds in order to eliminate the danger of accidentally striking the injured wrist. He has suffered a considerable loss in terms of the guidance, care and companionship he might reasonably have expected to receive from his wife.

[67] His damages are assessed, accordingly, at \$10,000.00.

[68] The injured plaintiff's son's damages are assessed at \$2,500.00 He testified as to the much-diminished social contact with his mother after May 9, 1999, and to the additional physical chores he now performs to assist his parents.

COSTS

[69] I may be spoken to on the matter of costs of the action.

CAVARZAN J.

Released: February 10, 2004

COURT FILE NO.: 99-2333
DATE: 20040210

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B E T W E E N:

**ROSEMARY BLANCHE WALTON, RONALD
WALTON and DAVID WALTON**

Plaintiffs

- and -

THE PLAINSMAN DINING ROOMS LIMITED

Defendant

REASONS FOR JUDGMENT

CAVARZAN J.

JC/sh

Released: February 10, 2004